

APPEARANCE REQUIRED.

.....
In The Matter of Adan Hernandez De Leon

26CV001325

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

.....
****at 9:30 a.m.****

In The Matter of Vivian L. Manfree Revocable Trust

25PR000179

MOTION TO ENFORCE INTERIM SETTLEMENT AGREEMENT [Filed 5/13/26]

TENTATIVE RULING: The Motion is DENIED.

A. PROCEDURAL MATTERS

Petitioner Lizbeth Manfree (“Liz”)¹ moves, pursuant to Code of Civil Procedure section 664.6, to enforce terms in accordance with an Interim Agreement between Liz and Respondents Debra Manfree (individually and as Trustee) and Amber Manfree, attached as Exhibit A to the Declaration of David G. Knitter (“Knitter Decl.”). Specifically, Liz requests an order (1) requiring Debra and Amber to provide a complete and accurate accounting of any and all accounts of Vivian Manfree for the time period November 1, 2019 to March 9, 2025 (Vivian’s date of death), (2) awarding costs and fees to Liz to be paid by Debra and Amber, and (3) requiring back up documentation for all transactions including but not limited to receipts, invoices, and 1099s.

The motion was noticed for hearing on June 10, 2026. The Court posted a Tentative Ruling the day prior stating that: “The relief requested in the present Motion—i.e., to compel Respondents to account—is the same relief requested in the First Amended Petition, which ordinarily goes to an evidentiary hearing. Moreover, the subject matter of the present Motion—i.e., whether or not Respondents’ accounting is code-compliant—is a matter that generally comes on for an evidentiary hearing after formal objections to the accounting are raised and settled. Thus, the Court does not intend to provide a Tentative Ruling on this Motion; rather, the continued hearing will be a case management conference on both the First Amended Petition and the present Motion.” The matter was heard as a Case Management Conference on June 10 and was continued to July 23 for further case management.

¹ Individuals are referred to herein by their first or last names for ease of reference and to avoid confusion. No disrespect is intended to any person or party.

At the hearing on July 23, Liz’s counsel requested a ruling on the Motion specifically as to (1) whether the confidentiality of mediation precludes evidence of the settlement agreement; and (2) whether Debra and Amber failed to comply with all the agreed upon accountings. (Liz’s counsel acknowledged that an accounting of Trust assets had been provided, but that Debra and Amber have failed to provide accountings for the non-Trust assets in Vivian’s name (i.e. checking accounts, savings accounts, the Charles Schwab account, the Franklin Templeton account and/or the MetLife account).)

The Court now issues its Tentative Ruling on the substance of the Motion as follows.

B. LEGAL STANDARD

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

C. DISCUSSION

Liz argues that “[i]f the court determines that the Interim Settlement Agreement is binding, the court can then enforce and interpret the agreement stipulated to by the parties and all of its terms. . . . and enter a judgment requiring Debra and Amber to account for all accounts of Vivian Manfree.” (Mem., 6:5-6, 13-14.)

Notably, section 664.6 allows two things: the court may (1) while the litigation is pending, “enter judgment pursuant to the terms of the settlement [of the case, or part thereof]” or (2) after dismissal of the case without prejudice, “enforce the settlement until performance in full of the terms of the settlement.” (*Ibid.*) Here, the case has not been dismissed; rather, the litigation is still pending. In this procedural landscape, the Court is only authorized to enter judgment pursuant to the terms of the settlement of the case, or part thereof, under section 664.6, subdivision (a).

However, entering *judgment* pursuant to the terms of the Interim Agreement—assuming *arguendo* the agreement is valid and enforceable and not subject to confidentiality provisions—is not possible where it does not *settle* any matter currently pending before the Court. The Interim Agreement does not reference the operative petition before the Court or state that the petition, or a portion thereof, is resolved by way of the Interim Agreement. (Knitter Decl., Exh. A.) Rather, the contents of the Interim Agreement confirm that it is essentially a tolling agreement. (*Ibid.*; see also Opp., 15:9-15.) Moreover, as Liz concedes, the subject of the Interim Agreement “was intended to set the stage for a potential settlement of all claims” (Mem., 5:16-18.) An agreement to do something to prepare for settlement is not a settlement agreement.

This point is raised by Debra and Amber in Opposition, where they state that the terms of the Interim Agreement themselves, and the fact that neither Debra nor Amber had yet appeared in the case at the time of signing the Interim Agreement, confirm that “the parties were not resolving the case. They suspended it while they tried to.” (Opp., 15:14-15, 15:24-16:10.)

In Reply, Liz attempts to show that the Interim Agreement is a valid agreement without meaningfully addressing or rebutting Debra’s and Amber’s contention that it is not an agreement “for settlement of the case, or part thereof” required by section 664.6, subdivision (a).

Based on the foregoing, the Court is simply without authority to enter judgment in these circumstances. As such, the Motion is DENIED.

This ruling renders it unnecessary for the Court to consider either questions of confidentiality raised by Debra and Amber in Opposition, or Debra and Amber’s compliance with the Interim Agreement.